

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 168 OF 2022

WITH

CIVIL REVISION NO. 169 OF 2022,

CIVIL REVISION NO. 170 OF 2022,

CIVIL REVISION NO. 196 OF 2022,

CIVIL REVISION NO. 274 OF 2022

&

CIVIL REVISION NO. 733 OF 2022

IN THE MATTER OF:

An application under section 115(1) of the
Code of Civil Procedure.

-And-

IN THE MATTER OF:

Nur Nabi

---Plaintiff-Appellant-Petitioner.

-Versus-

Md. Anowar Hossen and another

---Defendant-Respondent-Opposite Parties
(in C. R. No. 168 of 2022).

Nur Nabi

---Plaintiff-Appellant-Petitioner.

-Versus-

Md. Anowar Hossen and another

---Defendant-Respondent-Opposite Parties
(in C. R. No. 169 of 2022).

Mrs. Ashma Nur

---Plaintiff-Appellant-Petitioner.

-Versus-

Md. Anowar Hossen and another

---Defendant-Respondent-Opposite Parties
(in C. R. No. 170 of 2022).

Mrs. Ashma Nur

---Plaintiff-Appellant-Petitioner.

-Versus-

Md. Anowar Hossen and another
 ---Defendant-Respondent-Opposite Parties
 (in C. R. No. 196 of 2022).

Nur Nabi
 ---Plaintiff-Appellant-Petitioner.
 -Versus-

Md. Anwar Hossen and another
 ---Defendant-Respondent-Opposite Parties
 (in C. R. No. 274 of 2022).

Nur Nabi
 ---Plaintiff-Appellant-Petitioner.
 -Vusrus-

Md. Anowar Hossen and another
 ---Defendant-Respondent-Opposite Parties
 (in C. R. No. 733 of 2022).

Mr. Ashfaqur Rahman, Advocate
 ---For the Petitioner(s)
 (in all cases).

Mr. M. Moksadul Islam with
Mr. S. M. Ariful Islam, Advocates
 ---For the Opposite Parties
 (in all cases)

Heard on: 15.10.2023, 18.10.2023 and 30.10.2023.

Judgment on: 14.11.2023.

These 6 (six) common types of the revisional applications were filed and the similar Rules were issued thereupon by this court involving similar facts and law, thus, these 6 (six) Rules have been heard together and also taken up together for delivering by the following common judgment.

At the instance of both the plaintiff-appellant-petitioner(s) of these 6 (six) cases, namely, Nur Nabi and Mrs. Ashma Nur, these revisional applications were filed under section 115(1) of the Code of Civil Procedure calling upon the opposite parties to show cause as to why the judgment and order dated 14.09.2021 passed by the learned District Judge, Dhaka in the House Rent Appeal No. 12 of 2021 dismissing the appeal and thereby affirming the judgment and order dated 21.03.2021 passed by the learned Rent Controller and Senior Assistant Judge, Court No. 1, Dhaka in the House Rent Suit No. 08 of 2021 dismissing the same on the ground of maintainability should not be *set aside*.

The relevant common facts for disposal of these Rules, *inter alia*, are that the present petitioner(s) as the plaintiff(s) respectively filed 6 (six) House Rent Suits in the court of the learned Rent Controller and Senior Assistant Judge, Court No. 1, Dhaka as the House Rent Suit Nos. 06, 07, 08, 09, 10, 11 of 2021 under section 19(1) of the Premises Rent Control Act, 1991. The common cases of the plaintiff-petitioner(s), *inter alia*, are that Mrs. Shamsunnaher Mohsina Begum and others and also one A. K. M. Mojibur Rahman were the original owners of the Shop Nos. 201, 202, 203, 204, 205 & 205/A at Holding No. 47 in the

“Priyangan Shopping Center”, Police Station- New Market, Dhaka- 1205 a lease agreement dated 07.02.1994 was executed by and between the parties for selling possession of the above mentioned shops by fixing at Tk. 13,50,000/= (thirteen lac fifty thousand) as the consideration money for each shop. Subsequently, the present defendant-opposite parties, Md. Anower Hossen and Shahida Begum alias Shahida Anowar purchased the entire 4-storied building known as “Priyangan Shopping Center” on 10.10.2002 from the original owners including the above-mentioned shops and the present plaintiff-petitioner(s) executed a fresh agreement on 05.11.2002 with the owners of the shops and the fresh agreement contain the statement of regarding the sell of the possession. The plaintiff-petitioner(s) were conducting their business as per the 2nd fresh agreement and used to pay the regular rent to the petitioners. The plaint also contains that during the unprecedented COVID-19 pandemic, the Government of Bangladesh pronounced a nationwide lockdown, therefore, the shops and markets were closed and the business of the petitioner(s) did not continue for the duration of the pandemic of the COVID-19. The said shop owners requested the present defendant-opposite parties to

consider the prevailing pandemic situation to consider the monthly payment of rent, as such, on 07.11.2020 to consider the outstanding rent. On 09.02.2021 the petitioner(s) served legal notices upon the defendant-opposite parties to receive the monthly rent of the shops' owners. After 11 months from April 2020 to February 2021. The defendants received a monthly rent of 204 shops out of 210 shops but the defendant-opposite parties refused to receive the rent from the present plaintiff-petitioner(s) by Postal Service dated 24.02.2021 and 28.02.2021 but the Postal Service were returned as being not received on 08.03.2021, thus, the plaintiff-petitioner(s) filed these 6 (six) suits. As a result, of the refusal to receive the rent the present plaintiff-petitioner(s) filed as many as 6 (six) suits for each of the above shops in the court of the learned Rent Controller and Senior Assistant Judge, Court No. 1, Dhaka in order to pay after 12 months from the date of the stipulated period of time.

After receipt of the said suits the learned trial court fixed a date for admission hearing on 21.03.2021. The learned Rent Controller and Senior Assistant Judge, Court No. 1, Dhaka heard the plaintiff-petitioner(s) and on the same day, the cases were dismissed. Being aggrieved the plaintiff-petitioner(s) preferred 6

(six) appeals in the court of the learned District Judge, Dhaka as the house rent appeals. The present defendant-opposite parties appeared in the said cases to contest the appeals and submitted a reply that the plaintiff-petitioner(s) failed to pay the rent of the shops from April 2020 to February 2021, as such, the plaintiff-petitioner(s) were defaulters. Accordingly, the appeals were summarily dismissed by affirming the judgment of the learned trial court. Being aggrieved the present plaintiff-petitioner(s) filed as many as 6 (six) revisional applications in order to challenge the legality and propriety of the judgment passed by the learned appellate court and the present Rules were issued thereupon.

Mr. Ashfaqur Rahman, the learned Advocate, appearing for the plaintiff-appellant-petitioners in all the cases/Rules submits that the learned trial court has committed an error of law resulting in an error in the decision occasioning failure of justice by dismissing the case summarily without taking any evidence on the ground of maintainability which is not tenable in law. Since some seriously disputed questions of facts are involved in the instant suit, hence, it was incumbent upon the courts below to dispose of the suit after framing appropriate issues, hence, the

impugned judgment and order passed by the trial court as well as the appellate court below are liable to be *set aside*.

The learned Advocate further submits that both the courts below have committed an error of law resulting in an error in the decision occasioning failure of justice by failing to appreciate that both the courts below have failed to apply the principles laid down in Order- 41 Rule- 31 of the Code of Civil Procedure, 1908, hence, the impugned judgment and order passed by the learned trial court as well as the learned appellate court below are liable to be *set aside*.

All the Rules have been opposed by the present defendant-opposite parties.

Mr. M. Moksadul Islam, the learned Advocate, appearing along with the learned Advocate, Mr. S. M. Ariful Islam, for the opposite parties in all the Rules, submits that the present plaintiff-appellant-petitioners filed the above mentioned rent suits in the court of the learned Rent Controller and Senior Assistant Judge, Court No. 1, Dhaka under section 19(1) of the Premises Rent Control Act, 1991 in order to deposit the monthly rent due to the defendant-opposite parties but both the learned trial court and the learned appellate court below properly applied

their judicial mind as to the rent paid in the courts' below after the refusal by the defendant-opposite parties to receive the rent but the learned trial court dismissed the cases/suits on the ground that the plaintiff-petitioners have become as defaulters and the learned appellate court below also found that the appellants were defaulters on the face of suits/appeals, as such, both the courts below concurrently found that the petitioners were defaulters under the provision of 18 of the Premises Rent Control Act, 1991, as such, the learned appellate court committed no error of law under the provision of the Premises Control Act, 1991 and thereby no error or misreading or non-considering the evidence, therefore, all the Rules are liable to be discharged.

The learned Advocate also submits that the plaintiff-petitioners sent the monthly rent through Postal Service dated 28.02.2021 after 11 months, therefore, the plaintiff-petitioners became defaulters within the provisions of the Premises Rent Control Act, 1991 as well as the terms and conditions of the agreement executed by and between the parties for giving the rent after 11 months, therefore, the learned courts below after hearing the parties came to a lawful conclusion to disallow the appeal and thereby affirming the judgment and order of the

learned trial court, as such, no need for interference from this court is called for the ends of justice and all the Rules should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional applications filed by the plaintiff-appellant-petitioners in all the cases along with the annexures therein, in particular, the impugned judgment and order passed by the learned appellate court below and also perusing the important materials available in the lower courts record, it appears to me that the present defendant-respondent-opposite parties, Md. Anowar Hossen and Shahida Begum alias Shahida Anowar are the owners of the Shopping Mall known as “Priyangan Shopping Center” situated at Holding No. 47, Mirpur Road, Police Station- New Market, Dhaka-1205 containing to 210 shops in a 4-storied building and admitted position are that Mrs. Shamsunnahar Mohsina Begum and others and also one A. K. M. Mojibur Rahman were the original owners of the shop Nos. 201, 202, 203, 204, 205 and 205/A of the above holding which were subsequently transferred to the present defendant-opposite parties, namely, Md. Anowar Hossen and Shahida

Begum alias Shahida Anowar within the knowledge of the entire shop owners. The further admitted position by and between the parties is that the defendant-opposite parties received Tk. 13,50,000/= (thirteen lac fifty thousand) from each shop in the above “Priyangan Shopping Center” by selling possession of the shops. Admittedly, in the year 2020 to 2021, there was an outbreak of the COVID-19 pandemic in the whole World especially in Bangladesh, as such, shop services, transports and all other services were under lockdown and day-to-day business of the population of Bangladesh was restricted and limited for the safety of every one of the nation.

The disputes among the parties arose when the present plaintiff-petitioners failed to pay the monthly rent to the defendant-opposite parties within the stipulated period of time under section 18(5) and the relevant portion of the said Act, 1991 containing the following provision of law:

...“(৫) কোন ভাড়াটিয়া কোন বাড়ী সম্পর্ক এই ধারায় কোন সুবিধা পাইবার অধিকারী হই-বন না যদি-

(ক) তিনি ভাড়া চুক্তিতে নির্দিষ্ট তারিখের মধ্যে অথবা অনুরূপ কোন চুক্তির অবর্তমানে ভাড়া মাসের পরবর্তী মা-সর প-নর দি-নর ম-ধ্য, এই আই-নর অধীন অনু-মাদন-যোগ্য তৎকর্তৃক প্র-দয় পূর্ণ ভাড়া পরি-শোধ না ক-রন, অথবা

(খ) ধারা ১৯ এ বিধৃত ক্ষেত্রে, তিনি উক্ত ধারায় উল্লিখিত সম-য়র মধ্যে উহার বিধান মোতাবেক ভাড়া জমা না করেন এবং উক্ত ধারার উপ-ধারা (১) (খ) এ বর্ণিত ক্ষেত্রে উক্ত-ধারায় উল্লিখিত ভাড়া প্রেরণ খরচসহ জমা না ক-রন;” ...

Clause 7 of the Tenancy Agreement by and between the parties was signed on 13.03.2016 as written under the heading: “দোকানঘর ভাড়া পুনঃ নির্ধারণ সম্পর্কিত স্থায়ী চুক্তিপত্র দলিল” and also in another agreement as written under the heading: “দোকান ঘ-রর স্থায়ী পজেশন চুক্তিপত্র” dated 05.11.2002.

Clause 7 of the agreement contains the following conditions:

“দ্বিতীয় পক্ষ যদি পর-পর ৩ (তিন) মাস তার দোকান ঘ-রর ভাড়া পরিশোধ না করেন সে ক্ষেত্রে প্রথম পক্ষ/ মালিক উক্ত দোকান মালিক/ দ্বিতীয় পক্ষ-ক ‘ডিফলটার’ বা খেলাপকারী হিসা-ব চিহ্নিত করিয়া প্রিয়াজন শপিং সেন্টা-রর দোকান মালিক সমিতি-ক জানাই-বন। দোকান মালিক সমিতি উক্ত দোকানের বকেয়া ভাড়া পরবর্তী ৩ (তিন) মা-সর ম-ধ্য বা তৎপূ-র্ব প্রথম পক্ষ/ মালিক-ক পরি-শোধ করার জন্য দোকান মালিক/ দ্বিতীয় প-ক্ষর বিরূ-দ্ধ প্র-য়াজনীয় ব্যবস্থা গ্রহণ পূর্বক দোকা-নর ব-কয়া ভাড়া পরি-শা-ধর ব্যবস্থা নি-বন। অন্যথায় প্রথম পক্ষ/ মালিক তাহার (দোকান মালিক/ দ্বিতীয় প-ক্ষর) বিরূ-দ্ধ আইনানুগ ব্যবস্থা গ্রহণ পূর্বক উ-চ্ছদ করি-ত পারি-বন।”

I have carefully examined the provisions of law regarding the Premises Rent Control Act and the agreements by and between the parties, the present plaintiff-petitioners in all the

cases filed the suit in order to deposit monthly rent upon receiving the rent of shops by the defendant-petitioners. Admittedly, the present plaintiff-petitioners failed to pay the shops' rent to the defendant-opposite parties as per the clause of the agreement executed by and between the parties. Moreover, section 19 of the Premises Rent Control Act, 1991 provided that a tenant must pay the rent in the court if the owners of the premises refuse to accept the rent to file a case under section 19(2) of the Act, 1991 which reads as follows:

“(২) যেক্ষেত্রে ধারা ১৮ এ উল্লিখিত ভাড়া গ্রহণ করার অধিকারী ব্যক্তি সম্বন্ধে কোন প্রকৃত সন্দেহ বা বিবাদ দেখা দেয় সেক্ষেত্রে ভাড়া প্রদেয় হইবার তারিখ-পর প-পর দি-নর ম-ধ্য বা ধারা ১৮(৫) এর অধীন যে তারিখ উহা প্র-দয় হয় সেই তারিখ অতিবাহিত হইবার প-পর দি-নর ম-ধ্য ভাড়াটিয়া-

(ক) উক্ত ভাড়া জমা দিতে পারিবেন; এবং

(খ) আদালতের সিদ্ধান্ত বা পক্ষগণের মধ্যে আপাতের দ্বারা উক্ত স-ন্দহ দূর বা বিবাদ মিমাংসা না হওয়া পর্যন্ত বাড়ীর পরবর্তী সম-য়ের ভাড়াও জমা দিয়া যাই-ত পারি-বন।”

In the instant case, the petitioners deposited the shops rent after 11 (eleven) months which is not permissible under the Act 1991 and the agreement by and between the parties, as such, the tenants can not get the remedy by the admitted defaulters

because the present plaintiff-petitioners as the tenants became defaulters due to failure to pay the monthly rent.

As the tenants deposited the rent of 11 (eleven) months in the court of the learned Rent Controller and the Senior Assistant Judge, Court No. 1, Dhaka after 11 (eleven) months from the date of due the rent. Under section 18(5) of the Act, 1991 the plaintiff-petitioners cannot get any relief as the defaulters. Under section 19(2) of the Act, 1991 the present plaintiff-petitioners filed the above cases. The petitioners are departed to exhaust the provisions of the Premises Rent Control Act, 1991.

The learned trial court passed the judgment and order as to the maintainability of the rent suits and passed the judgment and order against the plaintiff-petitioners by rejecting summarily on the basis of the following findings:

....“বাদীর উচ্চ ছিল এপ্রিল-২০২০ মা-সর ভাড়া পরবর্তী মা-সর ৭ তারি-খর ম-ধ্য প্রতিপক্ষ বরাবর প্রদান করা এবং প্রতিপক্ষ তা গ্রহণ না করলে ডাকযোগে উক্ত এপ্রিল-২০২০ মা-সর ভাড়া প্রতিপক্ষ বরাবর প্রদান করা। কিন্তু দরখাস্তকারী তা না ক-র অর্থাৎ দীর্ঘ এপ্রিল- ২০২০ মাস হ-ত মার্চ- ২০২১ মাস পর্যন্ত মোট ১২ মাসের ভাড়া একত্রে প্রতিপক্ষ বরাবর মানি অর্ডার-যা-গ প্রদান করেছেন। এতে দরখাস্তকারী নালিশী সম্পত্তিতে স্পষ্ট ডিফল্টার ভাড়াটিয়া ম-র্ম আদাল-তর নিকট প্রতীয়মান হয়। এছাড়াও বাড়ি ভাড়া নিয়ন্ত্রন আইন ১৯৯১ এর ১৯ ধারাম-ত কোন মা-সর ভাড়া প্র-দয় হওয়ার তারি-খর প-নর দি-নর ম-ধ্য বা ধারা ১৮(৫) এর অধী-ন যে

তারি-খ ভাড়া প্র-দয় হয় সেই তারিখ অতিবাহিত হওয়ার প-নর দি-নর ম-ধ্য ভাড়াটিয়া ভাড়া প্রদান কর-ত পার-বন। কিন্তু বাদীপক্ষ নির্ধারিত ১৫ দি-নর ম-ধ্য ভাড়া প্রদা-নর জন্য কোন পদ-ক্ষপ গ্রহণ না ক-র দীর্ঘ সময় পর আদাল-ত দরখাস্ত আনয়ন ক-র-ছেন।”....

The learned appellate court below concurrently found the petitioners as to the defaulters and passed the judgment and order on the basis of the following findings:

....“”তাহাড়া বাড়ী ভাড়া নিয়ন্ত্রণ আইন ১৯৯১ এর ১৯ ধারা ম-ত কোন মা-সর ভাড়া প্রদা-নর তারি-খর প-নর দি-নর ম-ধ্য বা ধারা ১৮(৫) এর অধী-ন যে তারিখ ভাড়া প্র-দয় হয় সেই তারিখ অতিবাহিত হবার প-নর দি-নর ম-ধ্য ভাড়াটিয়া ভাড়া প্রদান কর-ত পার-বন। কিন্তু বাদী আপীলকারী পক্ষ আই-নর নির্ধারিত সময় সীমার ম-ধ্য ভাড়ার টাকা প্রদা-নর জন্য কোন পদ-ক্ষপ গ্রহণ ক-রনি। কেননা প্রার্থীপক্ষ বাড়ী ভাড়া আই-নর ১৯(১) ধারায় আশ্রয় পে-ত হ-ল যে সকল শর্ত পূরণ কর-ত হ-ব প্রার্থীপক্ষ সকল শর্ত লংঘন করছে ফলে প্রার্থী পক্ষ আর আপীল মোকদ্দমায় কোন প্রতিকার পেতে হকদার ন-হ।”....

In view of the above concurrent findings by the courts below the plaintiff-petitioners are not entitled to get any relief of the Act, 1991 as well as the agreement executed by and between the parties, as such, the petitioners would not get any remedy under the law and they are not entitled to get relief sought for in the Premises/House Rent Suits.

I am, therefore, not inclined to interfere upon the impugned judgment and order passed by the learned appellate court below affirming the judgment and order of the learned trial court.

However, there is an admitted position by and between the parties that the plaintiff-petitioners are the permanent possession purchasers of the shops being Nos. 201, 202, 203, 204, 205 and 205/A by providing consideration thereof as tenants. The plaintiff-petitioners would not get right to enjoy the possession, even though, they are defaulters under the agreement executed by and between the parties on 05.11.2002 which annexed as annexure- C-2 in the supplementary affidavit and they will not be asked to vacate or eject from the shops by the defendant-opposite parties.

The present defendant-opposite parties are hereby directed to receive the rent of shops which was already deposited in the learned trial court upon filing the House Rent Suits for accepting the rent of shops.

After perusing the complaints and submissions made on behalf of the defendant-petitioners, I consider that the learned appellate court below did not commit any error of law and there is no

misreading or non-consideration by affirming the judgment and order of the learned trial court. I am, therefore, not inclined to interfere upon the impugned judgment and order passed by the learned appellate court below.

Accordingly, I do not find merit in all the Rules.

In the result, the Rules issued by this court in all the Civil Revision Nos. 168, 169, 170, 196, 274 and also 733 of 2022 are hereby discharged.

The same interim direction passed by this court at the time of issuance of all the Rules as in the Civil Revision Nos. 168, 169, 170, 196, 274 and also 733 of 2022 to maintain the *status quo* in respect of the possession of the shops in question being shop Nos. 201, 202, 203, 204, 205 and also 205/A at “Priyangon Shopping Center”, situated at 47, Mirpur Road, Police Station-New Market, Dhaka-1205 and subsequently the same were extended from time to time are hereby recalled and vacated.

Also, the interim order of depositing the regular monthly rent of shops in the learned court below till disposal of the Rules by the petitioner(s) is hereby stopped.

The defendant-opposite parties are hereby directed to accept the rent of shops from the learned court of the Rent Controller and Senior Assistant Judge, Court No. 1, Dhaka.

Also, all shop/possession purchasers as the plaintiff-petitioners will remain as it is of their own possessions and give monthly the rent of shops every month in a stipulated time as per the agreement. The possession purchasers as the plaintiff-petitioners will not be ejected/evicted by the defendant-opposite parties.

The concerned section of this court is hereby directed to send down the lower courts record along with a copy of this judgment and order to the concerned courts below immediately.